

G. Veera Prasad vs G. Srilatha on 16 December, 2020

Author: M.Venkata Ramana

Bench: M.Venkata Ramana

HON'BLE SRI JUSTICE M.VENKATA RAMANA

TRANSFER CIVIL MISCELLANEOUS PETITION No.194 OF 2019

ORDER:

Heard Ms.Manasa, learned counsel representing Sri S.Subba Reddy, learned counsel for the petitioner and Sri Habibulla Shaik, learned counsel for the respondent.

2. This petition is filed to transfer HMOP No.28 of 2018 now pending on the file of the Court of learned Senior Civil Judge, Sattenapalli, to the Family Court, Guntur.

3. The respondent is the wife of the petitioner. Their marriage was celebrated on 02.05.2002 at Madala Village, Muppalla Mandal, Guntur District. For certain reasons, which are not relevant for the present purpose, they have been living separately. Learned counsel for the respondent now informs that she is residing at Muppalla Village, though she was earlier living at Guntur,, when FCOP No.629 of 2016 was instituted.

4. FCOP No.629 of 2016 was instituted by the petitioner against the respondent for dissolution of marriage and it is pending on the file of the Court learned Family Judge, Guntur. HMOP No.28 of 2018 was instituted by the respondent, which is now pending on the file of the Court of learned Senior Civil Judge, Sattenapalli. It is a petition filed under Section 9 of the Hindu Marriage Act by the respondent for restitution of conjugal rights. The parties are seriously contesting both these matters.

5. Now, the contention of the petitioner is that in order to avoid conflicting findings, both these matters should be tried by the same Court and therefore, HMOP No.28 of 2018 be brought to the Court of learned Family Judge, Guntur.

6. In the course of hearing, Sri Habibulla Shaik, learned counsel for the respondent also brings to the notice of this Court that a maintenance case in M.C.No.6 of 2018 is pending on the file of the First Additional Junior Civil Judge Court, Sattenapalli, instituted by the respondent against the petitioner.

7. From the contentions of both the learned counsel it appears that both the matters are part-heard.

8. Pointing out the situation, it is contended for the petitioner that both the matters be tried by the same Court instead of two different Courts to avoid conflictive findings and in as much as facts in issue in both the matters overlap and which stand for determination in common.

9. If the above ground is taken into consideration, pendency of not only HMOP No.28 of 2018 but also M.C. referred to above at Sattenapalli, makes out that the balance of convenience more lies in favour of the respondent than the petitioner. The petitioner should necessarily appear in both the matters, which are pending at Sattenapalli and if the divorce application pending before the Family Court at Guntur is now transferred to the Court of learned Senior Civil Judge, Sattenapalli, it would be more appropriate, in the circumstances. By this process, in as much as the same Court considers both these matters, possibility of avoiding conflicting findings is very much seen.

10. The course to follow to transfer a case from the Court of learned Family Judge to the Court of learned Senior Civil Judge, is not barred and this question was considered in Kaligithi Priyanka v. Javudula Rajeev Gandhi¹ holding that such course is permissible. Thus, there is (2020) 3 ALD 87 no legal bar for the Court of Senior Civil Judge to consider a matter, which was earlier pending in the Family Court and which is brought to on its file by mechanism of transfer, in terms of Section 24 C.P.C. when ordered by this Court.

11. Therefore, in the above circumstances, this Tr.C.M.P. is ordered directing withdrawal of F.C.O.P.No.629 of 2016 now pending on the file of the Court of learned Family Judge, Guntur and it is transferred on to the file of the Court of learned Senior Civil Judge, Sattenapalli, to try along with HMOP No.28 of 2018 on its file. FCOP No.629 of 2016, after it is renumbered in the Court of learned Senior Civil Judge, Sattenapalli, shall be treated as the lead case and evidence with reference to both these matters shall be let in therein in common. The evidence let in till now, in both these matters shall be treated as the evidence in the divorce application and if necessary, learned Senior Civil Judge, Sattenapalli, is directed to recall any of the witnesses so far examined, in both the matters, at request of either parties, for further examination or cross examination, as the case may be, in view of the present situation. No costs.

12. Interim orders granted earlier if any, stand vacated.

All pending miscellaneous petitions if any, shall stand closed.

____ JUSTICE M.VENKATA RAMANA Date: 16.12.2020 Pab